



CHAPTER 32

An Act to make further provision with respect to the pay, bounty and allowances of officers and men of the naval and marine reserves (including officers of reserve to the royal navy) and for purposes connected therewith.

[6th June, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Her Majesty may by Order in Council fix the rates of Rates of pay, bounty and allowances payable to persons described in bounty and allowances the First Schedule to this Act; and an Order in Council under for naval reserves. this section may be varied or revoked by a subsequent Order in Council.

(2) Sections three and five of the Naval and Marine Pay and 28 & 29 Vict. Pensions Act, 1865 (which respectively provide for regulating the c. 73. payment of naval and marine pay, pensions, bounty and other allowances and prohibit their assignment), shall apply in relation to pay, bounty and allowances payable to any person described in the said First Schedule as they apply in relation to pay, bounty and allowances payable in respect of services in Her Majesty's naval or marine force to a person being an officer or subordinate officer, seaman or marine; and the Naval Forces (Enforcement 10 & 11 Geo. 6. of Maintenance Liabilities) Act, 1947, shall have effect as if c. 24. any reference therein to an officer, seaman or marine included a reference to any person so described.

9 & 10 Geo. 6. c. 36. (3) Section twelve of the said Act of 1865 (which provides for the publication and laying before Parliament of Orders in Council under that Act) shall apply, and the Statutory Instruments Act, 1946, shall not apply, to Orders in Council under this section.

Short title
and repeals.

2.—(1) This Act may be cited as the Naval and Marine Reserves Pay Act, 1957.

(2) The enactments mentioned in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule, and the repeal by this subsection of any enactment shall extend to that enactment as applied by or incorporated in any other enactment.

SCHEDULES

FIRST SCHEDULE

Section 1.

PERSONS FOR WHOM RATES OF PAY, ETC., MAY BE FIXED

Officers of reserve to the royal navy.

Men of the royal naval reserve (including the royal fleet reserve).

Officers and men of the royal naval volunteer reserve.

Officers and men of the royal marine forces volunteer reserve.

Officers and men of the royal naval special reserve.

Officers and men of the royal naval emergency reserve.

Officers and men of the royal marine emergency reserve.

Persons in receipt of pensions in respect of service as men in the royal navy or the royal marines, being persons called into actual service or undergoing training.

SECOND SCHEDULE

Section 2.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
16 & 17 Vict. c. 73.	The Naval Volunteers Act, 1853.	In section sixteen, the words from "be entitled" to "shall also". In section seventeen, the words from the beginning to "Her Majesty's Navy; and".
22 & 23 Vict. c. 40.	The Royal Naval Reserve (Volunteer) Act, 1859.	Sections six and nine. In section thirteen, the words "and as to the pay and allowances to officers commanding such volunteers". In section fifteen, the words from "the said volunteers" to "Her Majesty's Navy; and".
26 & 27 Vict. c. 69.	The Officers of Royal Naval Reserve Act, 1863.	In section three, the words from the beginning to "from time to time appoint".
47 & 48 Vict. c. 46.	The Naval Enlistment Act, 1884.	In section four, the words "and be entitled to pay".
59 & 60 Vict. c. 33.	The Royal Naval Reserve Volunteer Act, 1896.	In section one, in subsection (1), the words "and pay" and the words "or paid".
63 & 64 Vict. c. 52.	The Naval Reserve Act, 1900.	In section one, in subsection (4), the words "and be entitled to the same pay".

Session and Chapter	Short Title	Extent of Repeal
3 Edw. 7. c. 6.	The Naval Forces Act, 1903	In section one, in subsection (2), in paragraph (i), the words "so much of section six as relates to naval pay", the words "nine and" and the words "pay and". Section three.
17 & 18 Geo. 5. c. 18.	The Royal Naval Reserve Act, 1927.	In section one, subsection (1).
11 & 12 Geo. 6. c. 25.	The Royal Marines Act, 1948.	In section one, in subsection (2), the words from "and section three" to "actual service".

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New Streets Act, 1951 (Amendment) Act, 1957

5 & 6 ELIZ. 2 CH. 33

ARRANGEMENT OF SECTIONS

Section

1. Refunds, etc., where work done otherwise than at expense of local authority.
2. Adoption of street where work done otherwise than at expense of local authority.
3. Agreements under s. 146 of Public Health Act, 1875.
4. Registration in local land charges register.
5. Interest on sums paid under principal Act.
6. Miscellaneous amendments of principal Act.
7. Interpretation.
8. Citation, construction and commencement.